

司馬法

active 4th century B.C. Rangju Sima

Project Gutenberg

司馬法

active 4th century B.C. Rangju Sima

Project Gutenberg

The Project Gutenberg eBook of 司馬法

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: 司馬法

Author: active 4th century B.C. Rangju Sima

Release date: April 25, 2008 [eBook #25167]

Language: Chinese

Other information and formats: www.gutenberg.org/ebooks/25167

Credits: Produced by Yi-Shin Lu

*** START OF THE PROJECT GUTENBERG EBOOK 司馬法 ***

Produced by Yi-Shin Lu

司馬法

仁本第一 天子之義第二 定爵第三 嚴位第四 用眾第五

仁本

古者，以仁為本以義治之之為正。正不獲意則權。權出於戰，不出於中人，是故：殺人安人，殺之可也；攻其國愛其民，攻之可也；以戰止戰，雖戰可也。故仁見親，義見說，智見恃，勇見身，信見信。內得愛焉，所以守也；外得威焉，所以戰也。

戰道：不違時，不歷民病，所以愛吾民也。不加喪，不因凶，所以愛夫其民也；冬夏不興師，所以兼愛民也。故國雖大，好戰必亡；天下雖安，忘戰必危。

天下既平，天子大愷，春蒐秋獮；諸侯春振旅，秋治兵。所以不忘戰也。

古者：逐奔不過百步，縱綏不過三舍，是以明其禮也；不窮不能而哀憐傷病，是以明其義也；成列而鼓，是以明其信也；爭義不爭利，是以明其義也；又能舍服，是以明其勇也；知終知始，是以明其智也。六德以時合教，以為民紀之道也。自古之政也。

先王之治，順天之道；設地之宜；官民之德；而正名治物；立國辨職，以爵分祿。諸侯說懷，海外來服，獄弭而兵寢，聖德之治也。

其次，賢王制禮樂法度，乃作五刑，興甲兵，以討不義。巡狩者方，會諸侯，考不同。其有失命亂常，背德逆天之時，而危有功之君，偏告于諸侯，彰明有罪。乃告于皇天上帝，日月星辰，禱于后土

四海神祇，山川冢社，乃造于先王。然後冢宰徵師于諸侯曰：「某國為不道，征之。以某年月日，師至于某國會天子正刑。」

冢宰與百官布令於軍曰：「入罪人之地，無暴神祇，無行田獵，無毀土功，無燔牆屋，無伐林木，無取六畜、禾黍、器械。見其老幼，奉歸勿傷。雖遇壯者，不校勿敵。敵若傷之，醫藥歸之。」

既誅有罪，王及諸侯修正其國，舉賢立明，正復厥職。

王、霸之所以治諸侯者六：以土地形諸侯；以政令平諸侯；以禮信親諸侯；以材力說諸侯；以謀人維諸侯；以兵革服諸侯。同患同利以合諸侯，比小事大以和諸侯。

會之以發禁者九：憑弱犯寡則眚之；賊賢害民則伐之；暴內陵外則壇之；野荒民散則削之；負固不服則侵之；賊殺其親則正之；放弑其君則殘之；犯令陵政則杜之；外內亂、禽獸行，則滅之。

天子之義

天子之義，必純取灋天地，而觀於先聖。士庶之義，必奉於父母，而正於君長。故雖有明君，士不先教，不可用也。

古之教民：必立貴賤之倫經，使不相陵；德義不相踰；材技不相掩；勇力不相犯。故力同而意和也。

古者，國容不入軍，軍容不入國，故德義不相踰。上貴不伐之士，不伐之士，上之器也。苟不伐則無求，無求則不爭，國中之聽，必得其情，軍旅之聽，必得其宜，故材技不相掩。從命為士上賞，犯命為士上戮，故勇力不相犯。

既致教其民，然後謹選而使之。事極修則百官給矣。教極省則民興良矣。習貫成則民體俗矣。教化之至也。

古者，逐奔不遠，縱緩不及。不遠則難誘，不及則難陷。以禮為固，以仁為勝。既勝之後，其教可復，是以君子貴之也。

有虞氏戒於國中，欲民體其命也。夏后氏誓於軍中，欲民先成其慮也。殷誓於軍門之外，欲民先意以行事也。周將交刃而誓之，以致民志也。夏后氏正其德也，未用兵之刃。故其兵不雜。殷義也，始用兵之刃矣。周力也，盡用兵之刃矣。夏賞於朝，貴善也。殷戮於市，威不善也。周賞於朝，戮於市，勸君子，懼小人也。三王彰其德一也。

兵不雜則不利，長兵以衛，短兵以守。太長則難犯，太短則不及。太輕則銳，銳則易亂。太重則鈍，鈍則不濟。

戎車，夏后氏曰鉤車，先正也。殷曰寅車，先疾也。周曰元戎，先良也。

旂，夏后氏玄首，人之執也。殷白，天之義也。周黃，地之道也。

章，夏后氏以日月，尚明也。殷以虎，白戎也。周以龍，尚文也。

師多務威則民詘，少威則民不勝。上使民不得其義，百姓不得其敘，技用不得其利，牛馬不得其任，有司陵之，此謂多威。多威則民詘。上不尊德而任詐慝，不尊道而任勇力，不貴用命而貴犯命，不貴善行而貴暴行，陵之有司，此謂少威。少威則民不勝。軍旅以舒為主，舒則民力足，雖交兵致刃，徒不趨，車不馳，逐奔不踰列，是以不亂。軍旅之固，不失行列之政，不絕人馬之力，遲速不過 誡命。

古者，國容不入軍，軍容不入國。軍容入國則民德廢，國容入軍則民德弱。故在國言文而語溫，在朝恭以遜，修己以待人，不召不至，不問不言，難進易退。在軍抗而立，在行遂而果，介者不拜，兵車不式，城上不趨，危事不齒。故禮 與灋表裏也。文與武左右也。

古者，賢王明民之德，盡民之善，故無廢德，無簡民，賞無所生，罰無所試。有虞氏不賞不罰而民可用，至德也。夏賞而不罰，至教也。殷罰而不賞，至威也。周以賞罰，德衰也。賞不踰時，欲民速得為善之利也。罰不遷列，欲民速覩 為不善之害也。大捷不賞，上下皆不伐善。上苟不伐善，則不驕矣；下苟不伐善，必亡等矣。上下不伐善若此，讓之至也。大敗不誅，上下皆以不善在己。上苟 以不善在己，必悔其過；下苟以不善在己，必遠其罪。上下分惡若此，讓之至也。

古者戍兵三年不興，覩民之勞也。上下相報，若此，和之至也。得意則愷歌，示喜也。偃伯靈臺，荅民之勞，示休也。

定爵

凡戰：定爵位，著功罪，收遊士，申教詔，訊厥眾，求厥技，方慮極物，變嫌推疑，養力索巧，因心之動。

凡戰：固眾，相利，治亂，進止，服正，成恥，約法，省罰。小罪乃殺；小罪勝，大罪因。

順天，阜財，懾眾，利地，右兵，是謂五慮。順天奉時，阜財因敵，懾眾勉若，利地守隘險阻，右兵弓矢禦，殳矛守，戈戟助。凡五兵五當，長以衛短，短以救長，迭戰則久，皆戰則強。見物與侔，是謂兩之。

主固勉若，視敵而舉。將心心也，眾心心也，馬牛車兵佚飽力也。教惟豫，戰惟節。將軍身也，卒支也，伍指拇也。

凡戰，智也，鬪，勇也，陳，巧也。用其所欲，行其所能，廢其不欲不能，於敵反是。

凡戰，有天，有財，有善。時日不遷，龜勝微行，是謂有天。眾有，有因生美，是謂有財。人習陳利，極物以豫，是謂有善。人勉及任，是謂樂人。大軍以固，多力以煩，堪物簡治，見物應卒，是謂行豫。輕車輕徒，弓矢固禦，是謂大軍。密，靜，多內力，是謂固陳。因是進退，是謂多力。上暇人教，是謂煩陳。然有以職，是謂堪物。因是辨物，是謂簡治。

稱眾，因地，因敵，令陳。攻，戰，守，進，退，止，前後序，車徒因，是為戰參。不服，不信，不和，怠，疑，厭，懾，枝柱，詘，頓，肆，崩，緩，是謂戰患。驕驕，懾懾，吟曠，虞懼，事悔，是謂毀折。大小，堅柔，參伍，眾寡，凡兩，是謂戰權。

凡戰：間遠，觀邇，因時，因財，貴信，惡疑。作兵義，作事時，使人惠。見敵，靜，見亂，暇，見危難，無忘其眾。居國惠以

信，在軍廣以武，刃上果以 敏。居國和，在軍灋，刃上察。居國見好，在軍見方，刃上見信。

凡陳：行惟疏，戰惟密，兵惟雜。人教厚，靜乃治，威利章。相守義，則人 勉，慮多成，則人服。時中服，厥次治。物既章，目乃明。慮既定，心乃強。進 退無疑，見敵無謀。聽誅，無誰其名，無變其旗。

凡事，善則長，因古則行，誓作章，人乃強，滅厲祥。滅厲之道：一曰義， 被之以信，臨之以強，成基，一天下之形，人莫不說，是謂兼用其人；一曰權， 成其溢，奪其好，我自其外，使自其內。

一曰人；二曰正；三曰辭；四曰巧；五曰火；六曰水；七曰兵，是謂七政。 榮，利，恥，死，是謂四守。容色積威，不過改意，凡此道也。唯仁有親，有仁 無信，反敗厥身。人人，正正，辭辭，火火。

凡戰之道，既作其氣，因發其政，假之以色，道之以辭，因懼而戒，因欲而事，蹈敵制地，以職命之，是謂戰灋。

凡人之形，由眾之求，試以名行，必善行之。若行不行，身以將之，若行而行，因使勿忘，三乃成章。人生之宜謂之灋。

凡治亂之道：一曰仁；二曰信；三曰直；四曰一；五曰義；六曰變；七曰尊。立法：一曰受；二曰灋；三曰立；四曰疾；五曰御其服；六曰等其色；七曰百 官無淫服。凡軍，使灋在己曰專，與下畏法曰法。軍無小聽，戰無小利，日成行 微，曰道。

凡戰正不行則事專，不服則法，不相信則一。若怠則動之，若疑則變之，若 人不信上，則行其不復。自古之政也。

嚴位

凡戰之道：位欲嚴；政欲栗；力欲窳；氣欲閑；心欲一。

凡戰之道：等道義；立卒伍；定行列；正縱橫；察名實。立進俯；坐進跪。畏則密；危則坐。遠者視之則不畏，邇者勿視則不散。位下，左右下，甲坐，誓徐行之。位逮徒甲，籌以輕重，振馬譟徒甲，畏亦密之。跪坐坐伏，則膝行而寬誓之。起譟鼓而進，則以鐸止之。御枚誓糗，坐膝行而推之，執戮禁顧，譟以先之。若畏太甚，則勿戮殺，示以顏色，告之以所生，循省其職。

凡三軍人戒分日，人禁不息，不可以分食，方其疑惑，可師可服。

凡戰：以力久；以氣勝；以固久；以危勝。本心固，新氣勝，以甲固，以兵勝。

凡車以密固，徒以坐固，甲以重固，兵以輕勝。人有勝心，惟敵之視；人有畏心，惟畏之視。兩心交定，兩利若一，兩為之職，惟權視之。

凡戰：以輕行輕則危；以重行重則無功；以輕行重則敗；以重行輕則戰。故戰相為輕重。舍謹甲兵，行陣行列，戰謹進止。

凡戰：敬則慊；率則服。上煩輕，上暇重。奏鼓輕，舒鼓重。服膚輕，服美重。

凡馬車堅，甲兵利，輕乃重。上同無獲；上專多死；上生多疑；上死不勝。

凡人：死愛，死怒，死威，死義，死利。

凡戰之道：教約人輕死；道約人死正。

凡戰：若勝若否，若天若人。

凡戰：三軍之戒，無過三日；一卒之警，無過分日；一人之禁，無過皆息。

凡大善用本，其次用末，執略守微，本末唯權，戰也。

凡勝：三軍一人勝。

凡鼓：鼓旌旗，鼓車，鼓馬，鼓徒，鼓兵，鼓首，鼓足，鼓兼齊。

凡戰：既固勿重，重進勿盡，凡盡危。

凡戰：非陳之難，使人可陳難；非使可陳難，使人可用難；非知之難，行之難。人方有性，性州異，教成俗，俗州異，道化俗。

凡眾寡，既勝若否。兵不告利，甲不告堅，車不告固，馬不告良，眾不自多，未獲道。

凡戰：勝則與眾分善；若將復戰，則重賞罰；若使不勝，取過在己；復戰則誓以居前，無復先術。勝否勿反，是謂正則。

凡民：以仁救；以義戰；以智決；以勇鬪；以信專；以利勸；以功勝。故心中仁，行中義，堪物智也，堪大勇也，堪久信也。讓以和，人自洽。自子以不循，爭賢以為，人說其心，效其力。

凡戰：擊其微靜，避其強靜；擊其倦勞，避其閑窳；擊其大懼，避其小懼。自古之政也。

用眾

凡戰之道：用寡固，用眾治。寡利煩，眾利正。用眾進止，用寡進退。眾以合寡，則遠裹而闕之。若分而迭擊，寡以待眾。若眾疑之，則自用之。擅利，則釋旗，迎而反之。敵若眾則相聚而受裹。敵若寡，若畏，則避之開之。

凡戰：背風；背高；右高；左險；歷沛；歷圯；兼舍環龜。

凡戰：設而觀其作；視敵而舉；待則循而勿鼓，待眾之作；攻則屯而伺之。

凡戰：眾寡以觀其變；進退以觀其固；危而觀其懼；靜而觀其怠；動而觀其疑；襲而觀其治。擊其疑；加其卒；致其屈；襲其規；因其不避；阻其圖；奪其慮；乘其懼。

凡從奔，勿息。敵人或止不路，則慮之。

凡近敵都必有進路，退，必有返慮。

凡戰：先則弊，後則懾，息則怠，不息亦弊，息久亦反其懾。書親絕，是謂絕顧之慮。選良次兵，是謂益人之強。棄任節食，是謂開人之意。自古之政也。

*** END OF THE PROJECT GUTENBERG EBOOK 司馬法 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project

Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund.

If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.